

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #07	CCRB Case #: 201707454	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/09/2017 3:15 PM	Location of Incident: Vicinity of 70 East 115th Street	18 Mo. SOL 3/9/2019	Precinct: 23		
Date/Time CV Reported Sat, 09/09/2017 4:09 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 09/09/2017 4:09 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daryll Nesbitt	17401	958979	PSA 5
2. POM Tyler Ryan	02810	957116	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan stopped § 87(2)(b)	A . Unsubstantiated
B . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan stopped § 87(2)(b)	B . Unsubstantiated
C . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan questioned § 87(2)(b)	C . Substantiated
D . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan questioned § 87(2)(b)	D . Substantiated
E . POM Tyler Ryan	Abuse: Police Officer Tyler Ryan searched § 87(2)(b)	E . Unsubstantiated
F . POM Daryll Nesbitt	Abuse: Police Officer Daryll Nesbitt searched § 87(2)(b)	F . Exonerated

Case Summary

On September 9, 2017, § 87(2)(b) filed this complaint via the CCRB's Call Processing System on behalf of himself and his friend, § 87(2)(b).

On September 9, 2017, at approximately 3:15 p.m., § 87(2)(b) and § 87(2)(b) were allegedly stopped by Police Officer Tyler Ryan of PSA 5 (**Allegations A and B: Abuse of Authority, unsubstantiated**). PO Ryan asked § 87(2)(b) and § 87(2)(b) if they had passed anything to each other, and he also asked § 87(2)(b) for his ID and about what he had in his pockets (**Allegations C and D, Abuse of Authority, substantiated**). PO Ryan allegedly searched § 87(2)(b)'s pockets (**Allegation E: Abuse of Authority, unsubstantiated**). PO Ryan's partner, PO Daryll Nesbitt, also of PSA 5, allegedly searched § 87(2)(b) (**Allegation F: Abuse of Authority, exonerated**). All parties were released from the scene without being arrested or summonsed.

Video footage depicting the interaction was obtained from NYCHA. However, due to the distance from the camera, as well as the poor video quality, the alleged misconduct was not captured [01-02 Board Review].

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Tyler Ryan stopped § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Tyler Ryan stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Tyler Ryan questioned § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Tyler Ryan questioned § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Tyler Ryan searched § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Daryll Nesbitt searched § 87(2)(b)

It is undisputed that PO Ryan and PO Nesbitt approached § 87(2)(b) and § 87(2)(b) based on PO Ryan's observation of a possible hand-to-hand drug transaction. It is also undisputed that PO Ryan was the only officer to observe the reported transaction. As the officers were acting on PO Ryan's observations, the stop allegations are pleaded against him.

§ 87(2)(b) testified that he was walking through the courtyard near 70 East 115th Street with his friend, § 87(2)(b) when they encountered § 87(2)(b) friend, § 87(2)(b). § 87(2)(b) did not remember making any physical contact with § 87(2)(b) as they greeted each other. No objects were exchanged. All parties continued moving during the greeting, and then § 87(2)(b) and § 87(2)(b) walked in the opposite direction of § 87(2)(b).

As the group separated, § 87(2)(b) and § 87(2)(b) were approached by PO Nesbitt, and § 87(2)(b) was approached by PO Ryan. PO Ryan instructed § 87(2)(b) to take his hands out of his pockets, and he then asked § 87(2)(b) what he had in his pockets. § 87(2)(b) replied that his ID was in his pocket, after which PO Ryan requested § 87(2)(b) ID. During this encounter, PO Ryan searched § 87(2)(b) by placing his hands into each of § 87(2)(b)'s pants pockets. § 87(2)(b) did not see any objects removed and assumed that no contraband was discovered because § 87(2)(b) was not arrested.

According to § 87(2)(b) PO Ryan requested his ID a second time. As he held his hands in the air, § 87(2)(b) told PO Nesbitt, “You want it? It’s right there. See the chain dangling?” as he looked toward his left pants pocket. PO Nesbitt removed the wallet and attached § 87(2)(b) from § 87(2)(b) pocket by pulling said chain. No other searches were conducted [03-04 Board Review].

§ 87(2)(b) withdrew his participation in this complaint, and § 87(2)(b) was unavailable to the investigation [05 Board Review, see IAs].

PO Ryan testified that he was in his parked vehicle and facing the courtyard when he observed § 87(2)(b) and § 87(2)(b) walk toward each other, clasp hands at chest height, pause for a few seconds, and retract their hands. The men then stood with § 87(2)(b) and talked. PO Ryan made these observations from a distance of about ten yards and did not see whether any objects or money were exchanged. He did not see any objects in either individual’s hands after the physical contact and did not observe either of them reach into their pockets or any containers. PO Ryan had no particular suspicion as to which party was the buyer or seller. He assumed that drugs were exchanged based on his experience in the area, a drug-prone location known for heroin, crack-cocaine, and marijuana. He has made over 20 drug-related arrests in the past two to three years in this area, including three arrests stemming from hand-to-hand transactions. There were no additional factors leading PO Ryan to approach the group.

PO Ryan informed PO Nesbitt that he may have observed a hand-to-hand drug transaction, but acknowledged that he was not certain. PO Nesbitt replied that he did not see the reported transaction. The officers exited their van and approached the group, at which point PO Ryan asked § 87(2)(b) and § 87(2)(b) if they had passed anything to each other. Both men answered negatively, and PO Ryan was satisfied with their responses. PO Ryan asserted that the group was not actually stopped. Rather, they were free to go at any point during the one to two minute interaction.

PO Ryan denied that PO Nesbitt had any conversation with the group. PO Ryan denied asking § 87(2)(b) what was in his pockets or removing anything from his pockets. No officer requested § 87(2)(b) ID. PO Ryan revealed that § 87(2)(b) voluntarily, and without prompting, removed an § 87(2)(b) from his pocket. PO Ryan also denied placing his hands into § 87(2)(b) s pockets or searching § 87(2)(b) in any manner.

PO Nesbitt denied observing the above-described exchange. He stated that PO Ryan informed him that he had observed a possible hand-to-hand transaction. PO Ryan did not say what he suspected to have been transferred or if he saw any money exchanged. No additional information was provided in regard to the possible exchange.

PO Nesbitt stated that he approached § 87(2)(b) and § 87(2)(b) PO Nesbitt did not say anything to § 87(2)(b) or § 87(2)(b) as he approached. Before PO Nesbitt had the opportunity to say anything, § 87(2)(b) voluntarily displayed his § 87(2)(b). PO Nesbitt did not ask § 87(2)(b) to remove the § 87(2)(b) from his pocket, nor did PO Nesbitt remove the § 87(2)(b) from § 87(2)(b) pocket himself. After observing § 87(2)(b) § 87(2)(b), PO Nesbitt

observed PO Ryan walking back to their vehicle. Due to the fact that PO Ryan was already leaving, PO Nesbitt left § 87(2)(b) and headed back to his vehicle.

According to PO Nesbitt, neither he nor PO Ryan inquired as to what was in § 87(2)(b) pockets. PO Ryan did not search § 87(2)(b) in any manner. PO Nesbitt did not observe or learn what investigative steps PO Ryan took to determine that § 87(2)(b) and § 87(2)(b) were not involved in a drug transaction. Like PO Ryan, PO Nesbitt stated that § 87(2)(b) and § 87(2)(b) were free to go at any time, though he did not know if this was ever explicitly stated to the group.

A Stop Report was not prepared for this incident [06 Board Review].

As noted above, video footage was obtained from NYCHA. However, the camera was a significant distance away from the incident location, and the image quality was poor. As such, the video captured no conclusive evidence of a search, and the investigation was further unable to use the video to determine whether the interaction rose to the level of a stop.



201707454_20171116_1108_DM.mp4

In a drug-prone location, tell-tale signs of drug activity, such as the furtive transfer of money or glassine envelopes, steering of potential buyers, concealment of unidentified objects, or flight can generate reasonable suspicion. People v. King, 200 A.D.2d 487 (1994) [10 Board Review]. However, behavior which is susceptible to innocuous as well as culpable interpretation will not constitute the founded suspicion required to question an individual or the reasonable suspicion required to conduct a stop. People v. De Bour, 40 N.Y.2d 210 (1976) [11 Board Review].

§ 87(2)(g)
It is therefore recommended that **allegations A, B, and E** be closed as **unsubstantiated**.

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **allegations C and D** be closed as **substantiated**.

§ 87(2)(g) It is therefore recommended that **allegation F** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the third CCRB complaint featuring § 87(2)(b) § 87(2)(b)
- This is the first CCRB complaint against PO Ryan during his three-year tenure.
- This is the first CCRB complaint against PO Nesbitt during his two-year tenure.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint because he did not want to see the officers again.
- A Notice of Claim inquiry was submitted to the Office of the New York City Comptroller on December 7, 2017. Its results will be added to the case file upon receipt [08 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator: _____
Signature _____ Inv. Jeffrey Mulinelli _____
Print Title & Name _____ Date _____

Squad Leader: _____
Signature _____ IM Diana Townsend _____
Print Title & Name _____ Date _____

Reviewer: _____
Signature _____ _____
Print Title & Name _____ Date _____